

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No. 63126 of 2022

Abdur Rashid Ghorami

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Shihab Shahriar, Advocate

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Heard and Judgment on 17.01.2024

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in Hizla Police Station Case No. 15 dated 26.07.2022 corresponding to G.R. No. 115 of 2022(Hizla) under Sections 302/201/34 of the Penal Code, 1860, now pending in the Court of learned Senior Judicial Magistrate, Hizla Cognizance Court, Barishal and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that victim Milon Daptari was murdered on 30.01.2022 at 10.30 P.M. in the dwelling Ghar of the wife of the son of the accused petitioner and his dead body was thrown in the Meghna river.

Mr. Shihab Shahriar, learned Advocate for the petitioner submits that the FIR of this case was lodged on 26.07.2022 after about 06(six) months of the occurrence. The dead body of victim Milon has not been recovered. There is no eye witness of the occurrence. The prosecution case is based solely on the confession of petitioner Abdur Rashid Ghorami.

The petitioner is an elderly man of above 65(sixty five) years which was obtained by physical torture.

The petitioner is in custody in connection of this case for 1½ (one and half) years but the case has not yet been transferred to the Court of sessions for trial.

Mr. Md. Abdul Aziz Masud, learned Assistant Attorney General opposes the petition for bail alleging that the petitioner has confessed to have murdered victim Milon.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

In the FIR the age of petitioner Abdur Rashid Ghorami has been stated to be 64(sixty four) years. The occurrence of murder took place on 30.01.2022 but the ejahar was lodged on 26.07.2022.

The occurrence allegedly occurred in the bedroom of the son's wife of the petitioner at around 10.30 A.M. In above confession the petitioner has stated that having continued illicit relation with the wife of his son despite repeated request not to do so and he lost self

control seeing the victim in a compromised condition in her room in the date of night. The dead body of above victim has not yet been recovered. On consideration of the place and time of alleged occurrence and the age of the petitioner, we are inclined to grant bail of the petitioner.

On consideration of above materials on record, we find substance in this petition and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is made absolute.

Let the accused-petitioner namely Abdur Rashid Ghorami, son of late Abdur Rob Ghorami be enlarged on bail subject to furnishing bail bond to the satisfaction of the learned Senior Judicial Magistrate, Hizla Cognizance Court, Barishal.

The learned Judge of the Court below is at liberty to cancel the bail of the accused-petitioner if he misuses the privilege of bail in any manner whatsoever.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.